

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANTOINE FLOWERS and BORN FORD,

Index No. _____
Purchased 7-18-18

Plaintiff

Plaintiffs designate Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

THE CITY OF NEW YORK,
POLICE OFFICER ANGEL PEREZ (shield # 12452)
and POLICE OFFICER EDWIN ESPINAL (shield # 955905),

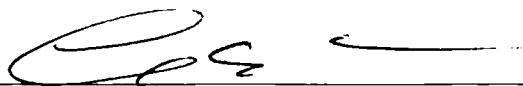
SUMMONS

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
July 18 2018



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiffs
115 East 57th Street, 11th Floor
New York, NY 10022
(212) 939-7251

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANTOINE FLOWERS and BORN FORD,

Purchased 7-18-18

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER ANGEL PEREZ (shield # 12452)
and POLICE OFFICER EDWIN ESPINAL (shield # 955905),

VERIFIED COMPLAINT

Defendants.

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Plaintiffs, by their attorney, **ELLIOT S. KAY**, as and for their Verified Complaint, respectfully
allege, upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ANTOINE FLOWERS and Plaintiff BORN FORD were residents of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendants, POLICE OFFICER ANGEL PEREZ (shield # 12452) ("P.O. PEREZ") and POLICE OFFICER EDWIN ESPINAL, (shield # 955905) ("P.O. ESPINAL") were and still are officers employed by Defendants.

BACKGROUND

5. On July 18, 2015, at approximately 10:00 p.m., in the vicinity of 639 East 169th Street in Bronx County, without just cause or provocation, defendants, including P.O. PEREZ and P.O. ESPINAL, approached Plaintiffs and erroneously informed Plaintiffs that they were not permitted to stand on a sidewalk in front of their friend's residence.

6. Although Plaintiffs were not engaged in any unlawful activity, P.O. PEREZ and P.O. ESPINAL violently handcuffed Plaintiffs and intentionally and falsely accused Plaintiffs of having committed the crimes of Resisting Arrest, Obstructing Governmental Administration and related charges.

7. Plaintiffs were taken to the 42nd Police Precinct, where they were searched and forced to remain in a cell.

8. Plaintiffs were later removed to Bronx Central Booking where they were photographed and forced to remain in various holding cells.

9. On or about July 20, 2015, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiffs commenced.

10. Plaintiffs remained in custody until they were released on or about July 20, 2015.

11. Plaintiffs had to defend against false charges until the criminal matter was terminated in Plaintiffs' favor when they were acquitted of all charges on June 1, 2017.

PROCEDURAL POSTURE

12. On June 15, 2017, Plaintiffs served a Notice of Claim in writing sworn to on Plaintiffs' behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place,

time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

13. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

14. A 50-H hearing has been held for each Plaintiff.

15. This action has been commenced within one year and ninety days after the causes of action of each Plaintiff accrued.

16. Plaintiffs have duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: MALICIOUS PROSECUTION

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.

18. In arresting Plaintiffs, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiffs.

19. The criminal case was terminated in Plaintiffs' favor when they were acquitted of all charges on June 1, 2017.

20. As a result of being maliciously prosecuted by the Defendants, Plaintiffs sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiffs' safety.

21. Due to the Defendants' malicious prosecution, Plaintiffs are entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

SECOND CAUSE OF ACTION: VIOLATION OF CIVIL RIGHTS

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.

23. P.O. PEREZ and P.O. ESPINAL were at all times relevant, duly appointed and acting as police officers with POLICE.

24. At all times mentioned herein, P.O. PEREZ and P.O. ESPINAL were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

25. At all times relevant herein, Plaintiffs were and are citizens of the United States and residents of Bronx County in the State of New York, and they bring this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

26. Defendant CITY is a municipality duly incorporated under the laws of the State of New York.

27. On July 18, 2015, at approximately 10:00 PM, the Defendants, including P.O. PEREZ and P.O. ESPINAL, while effectuating the seizure of Plaintiffs, did search, seize, assault and commit a battery and grab the person of Plaintiffs without a court authorized arrest or search warrant. Defendants, including P.O. PEREZ and P.O. ESPINAL, did physically seize the person of Plaintiffs during the arrest process in an unlawful and excessive manner. Plaintiffs were falsely arrested. Defendants did not possess probable cause to arrest Plaintiffs.

28. The above action of the Defendants resulted in Plaintiffs being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to Plaintiffs' person;
- b. Freedom from battery to Plaintiffs' person;
- c. Freedom from illegal search and seizure;

d. Freedom from false arrest;

e. Freedom from the use of excessive force during the arrest process.

29. The Defendants subjected Plaintiffs to such deprivations, either in a malicious or reckless disregard of Plaintiffs' rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

30. Prior to July 18, 2015, CITY and POLICE developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiffs' rights. It was the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged to make as many arrests as possible without concern for the validity of those arrests. The Defendant agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

31. The direct and proximate result of the Defendants' acts is that Plaintiffs have suffered injuries of a psychological nature. Plaintiffs were forced to endure pain, humiliation and suffering, all to the detriment of Plaintiffs.

32. Due to the Defendants' conduct, Plaintiffs are entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

THIRD CAUSE OF ACTION: EXCESSIVE FORCE PURSUANT TO 1983

33. Plaintiffs repeat and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

34. On or about July 18, 2015, Defendants P.O. PEREZ and P.O. ESPINAL used excessive force in handling Plaintiffs.

35. Solely as a result of the actions of Defendants, including P.O. PEREZ and P.O. ESPINAL, Plaintiffs were caused to suffer severe and serious personal injuries to mind and body, further, Plaintiffs were subjected to physical pain, mental anguish, embarrassment, extreme shock and nervousness.

36. The amount of force used to apprehend Plaintiffs was unjustified.

37. By reason of the foregoing, Plaintiffs' civil rights were violated.

38. Due to Defendants' use of excessive force upon Plaintiffs, Plaintiffs are entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

FOURTH CAUSE OF ACTION: ASSAULT IN VIOLATION OF CONSTITUTIONAL RIGHTS

39. Plaintiffs repeat and re-allege each and every allegation contained above as if fully set forth herein.

40. Defendants P.O. PEREZ and P.O. ESPINAL caused Plaintiffs to apprehend and/or fear unfriendly contact.

41. A reasonable person in the same circumstances as Plaintiffs would have apprehended and/or feared unfriendly contact.

42. Defendants P.O. PEREZ and P.O. ESPINAL assaulted Plaintiffs in violation of their civil rights.

43. Due to the Defendants' assault, Plaintiffs are entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

FIFTH CAUSE OF ACTION: PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS

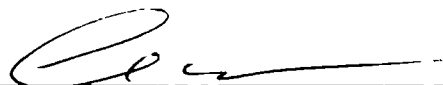
44. Plaintiffs repeat and re-allege each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

45. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiffs' well-being, and were based on a lack of concern and ill-will towards Plaintiffs.

46. Plaintiffs therefore demand punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiffs demand judgment against the Defendants in each separate cause of action in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter; together with the costs and disbursements of this action.

Dated: July 18, 2018
New York, NY



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
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(212) 939-7251

TO:

Zachary Carter
New York City Law Department
100 Church Street
New York, New York 10007

P.O. ANGEL PEREZ (shield # 12452)
P.O. EDWIN ESPINAL (shield # 955905)

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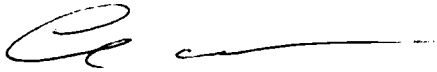
Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER ANGEL PEREZ (shield # 12452)
and POLICE OFFICER EDWIN ESPINAL (shield # 955905),**VERIFICATION**Defendants.
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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not Plaintiffs is because Plaintiffs reside outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
July 18, 2018

ELLIOT S. KAY